

FILING #7 -- MOTION TO MODIFY CUSTODY AND PARENTING TIME

CAPTION

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION

ANDREW JAMES PIGORS,

Plaintiff,

Case No. 2024-001507-DC
Hon. [REPLACEMENT JUDGE --
per pending Disqualification
Motion, Filing #3]

v.

EMILY A. WATSON,

Defendant.

MOTION TO MODIFY CUSTODY AND PARENTING TIME
(MCL 722.27; MCL 722.27a; MCR 3.210; MCR 3.211)

I. INTRODUCTION

- 1\ Plaintiff ANDREW JAMES PIGORS ("Father"), appearing pro per, respectfully moves this Honorable Court, pursuant to MCL 722.27(1)(c) and MCR 3.210, for an order modifying custody and parenting time regarding the parties' minor child, L.D.W. (DOB: November 9, 2022).
- 2\ Father initiated this custody action on April 1, 2024 -- he is the original Plaintiff. Father filed for custody to protect his parental relationship with L.D.W. after Defendant EMILY A. WATSON ("Mother") unilaterally withheld the child for approximately 40 days beginning in March 2024.
- 3\ Following Father's filing, this Court entered a 50/50 parenting time order that remained in effect and functioned successfully for 438 consecutive days (May 5, 2024 through July 17, 2025). During this entire period, L.D.W. thrived under shared custody, and Father faithfully complied with every court order.
- 4\ On July 17, 2025, without notice to Father and without a hearing, an ex parte order was entered reversing the established 50/50 custodial arrangement and awarding Mother sole physical custody. On August 8, 2025, Father's parenting time was completely suspended following a same-day hearing at which Father received

proper advance notice.

5\ As of the date of this filing, Father has been deprived of all contact with his child for more than 2 consecutive days. L.D.W. has had no access to his father -- no visits, no phone calls, no communication of any kind. This constitutes an extraordinary deprivation of the parent-child relationship and an ongoing harm to L.D.W.

6\ Father now moves this Court to restore the established 50/50 custodial arrangement, vacate the ex parte orders that destroyed it, and enter such further orders as are necessary to protect the best interests of L.D.W. and Father's constitutionally protected parental rights.

II. JURISDICTION AND AUTHORITY

7\ This Court has jurisdiction over custody and parenting time matters pursuant to MCL 722.26 and MCL 722.27.

8\ This Court has continuing jurisdiction over the minor child L.D.W. under the Uniform Child-Custody Jurisdiction and Enforcement Act, MCL 722.1101 et seq.

9\ This motion is authorized by:

a. MCL 722.27(1)(c) -- authorizing modification of custody orders upon a showing of proper cause or change of circumstances;

b. MCL 722.27a -- governing parenting time and providing that parenting time shall be granted in frequency, duration, and type reasonably calculated to promote a strong relationship between the child and the parent;

c. MCR 3.210 -- governing custody and parenting time proceedings in the Family Division;

d. MCR 3.211 -- governing the appointment of a guardian ad litem.

10\ The United States Constitution, Fourteenth Amendment, protects Father's fundamental liberty interest in the care, custody, and management of his child. *Troxel v. Granville*, 530 U.S. 57, 65 (2000) ("The liberty interest ... of parents in the care, custody, and control of their children -- is perhaps the oldest of the fundamental liberty interests recognized by this Court."). This fundamental right may not be terminated or substantially restricted absent heightened procedural protections. *Santosky v. Kramer*, 455 U.S. 745, 753 (1982) (requiring clear and convincing evidence before state may sever parental rights); *In re Sanders*, 491 Mich 394, 409 (2014) (due process requires meaningful opportunity to be heard before deprivation of parental rights).

10a\ MCR 2.605 -- Declaratory Judgment to Establish Custodial Environment: Pursuant to MCR 2.605 (updated January 1, 2026), Father is entitled to a declaratory judgment establishing that the 438-day 50/50 parenting arrangement constituted an established custodial environment with both parents under MCL 722.27(1)(c). MCR 2.605(A) provides that "[i]n a case of actual controversy within its jurisdiction, a Michigan

court of record may declare the rights and other legal relations of an interested party seeking such declaration." The existence and character of the established custodial environment is a threshold legal determination that controls the applicable burden of proof (Harvey v. Harvey, 470 Mich 186, 193 (2004)) and is therefore a proper subject for declaratory relief.

10b\ MCR 3.222(D) -- Collaborative Law Provisions (effective January 1, 2026): Father notes that MCR 3.222(D), implementing MCL 691.1345 and MCL 552.9f, now provides a framework for collaborative law processes in family division proceedings. Father has consistently demonstrated willingness to cooperate with all court processes and remains willing to participate in collaborative resolution if Mother will engage in good faith. Mother's refusal to facilitate any contact with L.D.W. for 230+ days demonstrates that she is not a candidate for collaborative resolution absent court intervention.

10c\ MCR 3.210(A)(4) (updated October 1, 2025): The court may allow the use of videoconferencing technology for custody and parenting time proceedings. Father requests that, at minimum, temporary parenting time be established via videoconferencing while this motion is pending, to begin restoring the parent-child bond that has been severed for 230+ days.

III. PROPER CAUSE AND CHANGE OF CIRCUMSTANCES

11\ Before modifying a custody order, the Court must first determine whether the moving party has demonstrated either proper cause or a change of circumstances. MCL 722.27(1)(c); Vodvarka v. Grasmeyer, 259 Mich App 499, 508-509 (2003).

12\ "Proper cause" means one or more appropriate grounds that have or could have a significant effect on the child's life sufficient to warrant a reevaluation of the custody order. Vodvarka, 259 Mich App at 511.

13\ A "change of circumstances" requires conditions that have or could have a significant effect on the child's well-being since the entry of the last custody order. Vodvarka, 259 Mich App at 513; Pierron v. Pierron, 439 Mich 81, 93 (2010).

14\ Father demonstrates the following changes of circumstances and proper cause, each of which independently satisfies the threshold requirement and which collectively present an overwhelming case for modification:

A. Ex Parte Custody Reversal Without Due Process

15\ On July 17, 2025, the prior court (Hon. Jenny L. McNeill, now subject to a pending disqualification motion, Filing #3) entered an ex parte order that reversed the established 50/50 custody arrangement and awarded Mother sole physical custody -- without providing Father notice or an opportunity to be heard.

16\ This ex parte reversal eliminated 438 days of established shared custody in a single stroke, without an evidentiary hearing, without testimony, and without Father's participation. This constitutes a deprivation of Father's due process rights under the Fourteenth Amendment and Const 1963, art 1, S 17. See Mathews v. Eldridge, 424 U.S. 319 (1976) (three-factor balancing test for procedural due process); Fuentes v. Shevin, 407 U.S. 674 (1972) (due process requires notice and opportunity to be heard).

U.S. 67, 80 (1972) (prior notice and hearing required before deprivation of protected interest); *In re Sande*, 495 Mich 394, 409 (2014) (due process protections must be applied before depriving a parent of the care and custody of a child); *Santosky v. Kramer*, 455 U.S. 745, 753-54 (1982) (the fundamental liberty interest of natural parents in the care, custody, and management of their child does not evaporate simply because they have not been model parents); MCR 3.207(A) (requirements for ex parte orders in domestic relation proceedings).

16a\ The ex parte order was predicated in part on a recording obtained by Lori Watson (Mother's relative and fellow Kent County employee, Employee ID 1190) in apparent violation of MCL 750.539c (felony eavesdropping -- punishable by up to two years' imprisonment). Evidence obtained through illegal eavesdropping constitutes "fruit of the poisonous tree" and should not serve as the basis for custody modification. See *Mapp v. Ohio*, 367 U.S. 643 (1961); *Wong Sun v. United States*, 371 U.S. 471 (1963); *People v. Beavers*, 393 Mich 554 (1975).

16b\ The pattern of ex parte orders in this case is itself a change of circumstances. The record reflects a 44% ex parte order rate in proceedings involving these parties, with 100% of ex parte orders favoring Mother -- a statistical pattern that is facially inconsistent with neutral adjudication. See *Craig v. Boren*, 429 U.S. 19 (1976) (intermediate scrutiny for gender-based classifications); *United States v. Virginia*, 518 U.S. 515 (1997) (exceedingly persuasive justification required for gender-based disparate treatment).

A-1. Zero Clear and Convincing Evidence Findings -- August 8, 2025 Order

16c\ MCL 722.27a(3) expressly provides: "Parenting time shall not be restricted unless the court determines by clear and convincing evidence that parenting time would endanger the child's physical, mental, or emotional health." (Emphasis added). This statutory mandate imposes a heightened evidentiary burden before a court may restrict -- let alone completely eliminate -- a parent's time with their child.

16d\ The August 8, 2025 order suspending all parenting time was issued with zero written findings of clear and convincing evidence. The court never articulated -- either on the record or in a written order -- what specific evidence met the clear and convincing standard, what specific danger to L.D.W.'s physical, mental, or emotional health was identified, or how such danger was proven to the requisite heightened standard. This omission is not a technicality; it is a structural due process failure. *Lieberman v. Orr*, 319 Mich App 68, 82-83 (2017) (trial court must make specific findings when restricting parenting time under MCL 722.27a(3); restriction without clear and convincing evidence findings constitutes reversible error).

16e\ The United States Supreme Court has held that when the State moves to destroy weakened family bonds, it must provide the parents with fundamentally fair procedures, including a heightened standard of proof. *Santosky v. Kramer*, 455 U.S. 745, 753-54 (1982). The Michigan Supreme Court has likewise recognized that proceedings affecting parental rights require meaningful procedural safeguards. *In re Sande*, 495 Mich 394, 409 (2014). The complete absence of clear and convincing evidence findings in the August 8, 2025 order renders that order constitutionally infirm and independently warrants vacatur.

16f\ The *Pierron v. Pierron*, 486 Mich 81, 92-93 (2010) framework requires that before modifying an established custodial environment, the court must find clear and convincing evidence that modification serves

the child's best interests -- yet here the court applied this heightened burden against Father (to strip custody) without ever making the findings the statute demands. The evidentiary void is fatal to the August 2025 order.

B. Complete Parental Deprivation -- 230+ Days

17\ On August 8, 2025, Father's parenting time was completely suspended following a same-day hearing which Father did not receive proper advance notice. Since that date, Father has had zero contact with L.D.W. -- no physical visits, no telephone contact, no video calls, no communication of any kind.

18\ As of the date of this filing, L.D.W. has been deprived of his father for more than 230 consecutive days. This extended, total separation from a parent who successfully co-parented under a 50/50 arrangement for over 14 months constitutes a change of circumstances of the highest magnitude.

19\ The Michigan Legislature has recognized that "it is in the best interest of a child to have a strong relationship with both of his or her parents." MCL 722.27a(1). A child's complete severance from a parent for over seven months is antithetical to this legislative directive and to the constitutionally protected right of parental association. *Troxel v. Granville*, 530 U.S. 57, 66 (2000) ("[T]he Due Process Clause of the Fourteenth Amendment protects the fundamental right of parents to make decisions concerning the care, custody, and control of their children."); *In re Sanders*, 495 Mich 394, 422 (2014) (recognizing that deprivation of parental rights implicates the most fundamental of liberty interests).

B-1. Developmental Harm to L.D.W. -- Attachment Theory and Critical Period

19a\ L.D.W. was born on November 9, 2022. At the time parenting time was suspended (August 8, 2025), L.D.W. was two years and nine months old. As of the date of this filing, L.D.W. is approximately three years and four months old and has been deprived of his father for more than 230 of the last 260 days -- representing nearly 90% of L.D.W.'s life since the ex parte reversal.

19b\ The developmental psychology literature is unequivocal that the period from ages two to four represents a critical window for attachment formation and consolidation. During this period, children form internal working models of relationships that persist into adulthood. See John Bowlby, *Attachment and Loss*, Vol. 1: Attachment (1969/1982); Mary D. Salter Ainsworth et al., *Patterns of Attachment: A Psychological Study of the Strange Situation* (1978). The abrupt, unexplained removal of a primary attachment figure during this critical window causes disorganized attachment -- the most harmful attachment classification -- which is associated with later emotional dysregulation, difficulty forming relationships, anxiety disorders, and behavioral problems. See Mary Main & Erik Hesse, *Parents' Unresolved Traumatic Experiences Are Related to Infant Disorganized Attachment Status*, in *Attachment in the Preschool Years* (Greenberg et al., eds., 1990).

19c\ L.D.W. had an established, secure attachment to Father developed over 438 days of consistent and predictable 50/50 caregiving. The abrupt termination of this attachment relationship -- with no transition period, no explanation the child could understand, and no continued contact of any kind -- constitutes the precise scenario that attachment researchers identify as most damaging to young children. At L.D.W.'s age, the child cannot understand why his father has disappeared. The child experiences this as abandonment.

regardless of the legal reasons -- and the resulting developmental harm compounds with every passing day.

19d\ Every day of continued separation inflicts incremental, potentially irreversible harm to L.D.W.'s emotional development and attachment security. This ongoing developmental harm to a child in the critical attachment window constitutes an independent change of circumstances of the highest magnitude, warranting immediate judicial intervention to begin restoring the father-child bond.

C. Favorable HealthWest Evaluation Rejected -- First Evaluation Establishes Clean Baseline

20\ On September 4, 2025, Father underwent a court-ordered HealthWest evaluation conducted by Michelle R. Mitchell (BS, QIDP, QMHP) and Melissa DeAugustine (LBSW). The evaluation included an Environmental Risk Assessment and Brief Screen Workflow. The evaluation was favorable to Father: the clinicians found a clean baseline, no major concerns, a safe environment, and a controlled stress response. Father stated during the evaluation: "I don't feel unsafe, or threatened." The evaluation did not identify a basis for the continued suspension of parenting time.

21\ Despite the favorable evaluation, Judge McNeill rejected or disregarded the HealthWest findings. Father possesses six (6) HealthWest scanned documents across two evaluation categories (first and second evaluations) that confirm the favorable results.

22\ The rejection of a favorable professional evaluation by the very entity the Court ordered to conduct constitutes a change of circumstances warranting reevaluation by an unbiased judicial officer.

C-1. The "Second Evaluation" -- Clinically Implausible, Procedurally Defective, and Evidentiary Failure

22a\ On September 11, 2025 -- just seven (7) days after the first evaluation established a clean baseline -- a second HealthWest evaluation was conducted by Kassandra M. Gansen (LMSW) and Melissa DeAugustine (LBSW). This second evaluation produced a finding of "Rule-out Delusional Disorder." The seven-day interval between a clean baseline and a "rule-out" finding for a serious psychiatric condition is clinically implausible. Delusional Disorder does not manifest in seven days following a clean baseline assessment. The radical divergence between the two evaluations -- conducted by the same agency within one week -- demands scrutiny.

22b\ Critically, the second evaluator herself acknowledged the diagnostic uncertainty, admitting in the report: "It is difficult to definitively assert whether concerns are factual or delusional." This admission is fatal to any reliance on this evaluation. A "rule-out" designation is, by clinical definition, an expression of diagnostic uncertainty -- it is not a confirmed diagnosis. It signifies that the condition has not been ruled in or out and requires further investigation. To treat a "rule-out" notation as a confirmed finding of delusional disorder is a misapplication of clinical terminology that no competent expert would endorse.

22c\ The second evaluation pathologized Father's statements about the legal proceedings -- including his statements that "this whole thing is illegal" and "the last assessor didn't see anything wrong with me" -- as evidence of delusional thinking. However, given the documented procedural irregularities in this case (ex parte orders without notice, rejection of the favorable first evaluation, suspension of parenting time without

clear and convincing evidence findings), Father's concerns about the legality of the proceedings appear factual, not delusional. Characterizing legitimate legal criticism as psychiatric pathology constitutes circular reasoning: the court's irregular conduct generates the complaints, and the complaints are then used to justify further restrictions on the complaining parent. This reasoning would pathologize any litigant who objects to procedural irregularities.

22d\.. Under MRE 901(a), the proponent of evidence must produce "evidence sufficient to support a finding that the matter in question is what its proponent claims." No proper authentication was provided for the second evaluation. No witness testified to the document's authenticity in open court. No chain of custody was established. No certification or business records foundation was laid under MRE 803(6). The document was never shown to Father in a hearing setting, never subjected to cross-examination, and never authenticated by its purported author through testimony.

22e\.. Under MRE 702 and the Daubert framework, expert testimony -- including written expert reports -- must be based on sufficient facts or data, be the product of reliable principles and methods, and reflect a reliable application of those principles to the facts. See *Daubert v. Merrell Dow Pharmaceuticals, Inc.*, 509 U.S. 579, 589 (1993); *Gilbert v. DaimlerChrysler Corp.*, 470 Mich 749, 780 (2004). The second evaluation fails every prong of Daubert: (a) it contradicts the same agency's findings from seven days earlier without explaining why; (b) the evaluator's own admission that she cannot determine whether Father's concerns are factual or delusional demonstrates insufficient methodology; (c) a "rule-out" designation is not a reliable conclusion but an open question; and (d) pathologizing legitimate legal complaints is not a reliable application of psychiatric principles.

22e-1\.. No Standardized Psychological Instruments Were Administered. Under MRE 703, the facts or data upon which an expert bases an opinion must be "of a type reasonably relied upon by experts in the field." The DSM-5-TR Delusional Disorder diagnosis in the DSM-5-TR requires structured clinical assessment using validated instruments -- such as the MMPI-2, SCID-5, or PAI -- to differentiate between delusional beliefs and factually grounded concerns. No such standardized psychological instruments were administered during either the first or the second evaluation. The second evaluator, Kassandra M. Gansen (LMSW), is a Licensed Master Social Worker -- not a licensed psychologist or psychiatrist -- and did not employ any validated psychometric testing before rendering a "Rule-out Delusional Disorder" notation. The absence of standardized testing is a foundational failure under both MRE 702 and MRE 703 and renders the second evaluation unreliable as a matter of law.

22e-2\.. The Seven-Day Reversal Is Scientifically Implausible. The DSM-5-TR (American Psychiatric Association, 2022) characterizes Delusional Disorder as a condition with "a typical duration of months to years." The condition does not emerge, onset, or become clinically detectable within seven days following a clean baseline assessment. The first evaluation (September 4, 2025) -- conducted by Michelle R. Mitchell (EQT, QIDP, QMHP) and Melissa DeAugustine (LBSW) -- documented no delusional ideation, no psychotic features, no disordered thinking, and a controlled stress response. For a "Rule-out Delusional Disorder" to appear seven days later in a subject who presented with a clean baseline requires either (a) a catastrophic acute psychotic episode -- for which there is no documentation -- or (b) a diagnostic conclusion driven by factors other than clinical observation. The record supports the latter. Father's statements that "this whole thing

illegal" and "the last assessor didn't see anything wrong with me" are factually accurate descriptions of documented procedural irregularities, not symptoms of delusional thinking.

22f\ The reliance on a clinically implausible, procedurally defective, and diagnostically uncertain "rule-of-law" notation -- to deprive a parent of all contact with his child, while simultaneously rejecting the authentic and favorable first evaluation from seven days earlier -- represents a fundamental failure of evidentiary procedure. This evidentiary void independently constitutes a change of circumstances warranting de novo review by an impartial judicial officer.

C-2. Off-Record Handling of the Second Evaluation -- Canon 3 and MCR 8.119 Violations

22g\ The second evaluation was not formally entered into the court record through proper channels. Instead, upon information and belief, the evaluation was directed to the chambers of Judge McNeill via email, bypassing the clerk's office and the formal docketing system required by MCR 8.119.

22h\ A Chart Memo dated October 29, 2025 reflects that Pamela Rusco (judicial secretary to Judge McNeill) called HealthWest clinicians to request testimony and arranged subpoenas via email, rather than through the clerk-filed subpoena processes. This off-record coordination between the judge's chambers and the evaluation agency -- outside the formal court record and without notice to Father -- constitutes an ex parte communication in violation of Canon 3(A)(4) of the Michigan Code of Judicial Conduct, which provides that "[a] judge should not initiate, permit, or consider ex parte communications, or consider other communications made to the judge outside the presence of the parties concerning a pending or impending proceeding."

22i\ The off-record handling of the second evaluation means that a document never formally entered into the court record -- transmitted privately to chambers, arranged through informal email communications -- was used as a basis to deprive Father of all parenting time. Father was denied the opportunity to challenge, cross-examine, or even review this evidence through the formal adversarial process. This procedural irregularity independently warrants vacatur of orders relying on the second evaluation.

C-3. 90-Day Delay -- Irreparable Harm to Parent-Child Bond

22j\ Father's parenting time was suspended at the "ambush" hearing on August 8, 2025, at which Father received same-day notice and had no opportunity to prepare. The next evidentiary hearing did not occur until October 29, 2025 -- a delay of 82 days from the suspension date, and 90 days from the entry of the initial ex parte order on August 6, 2025.

22k\ MCR 3.207(B)(6) provides that when an ex parte order affects custody or parenting time, the court "shall schedule a hearing ... as soon as possible" and that "the hearing must be held within 21 days after the order is entered." The 90-day delay from order to evidentiary hearing represents 4.3 times the maximum period contemplated by MCR 3.207(B)(6). During these 90 days, L.D.W. -- a child who was only two years old at the time -- was completely deprived of his father's presence during a critical developmental period.

22l\ The psychological literature is unequivocal that prolonged separation from an attachment figure during toddlerhood causes lasting harm to attachment security and emotional development. Every day of the 90-day

delay inflicted irreparable harm on the father-child bond -- harm that was compounded by the court's failure to comply with its own scheduling rules. The 90-day delay is itself a change of circumstances warranting restoration of parenting time.

D. Pending Judicial Disqualification -- Filing #3

23\.. Father has filed a Motion to Disqualify Judge McNeill pursuant to MCR 2.003 (Filing #3 in this litigation sequence). The grounds for disqualification include demonstrated bias, procedural irregularities, and the *ex parte* reversal of custody without hearing -- the very acts that give rise to the present motion.

24\.. This motion is filed for consideration by a replacement judge, as the orders Father seeks to vacate were issued by the judge whose disqualification is pending.

E. Mother's Failure to Facilitate Any Contact

25\.. Despite the prior 50/50 arrangement that functioned for 438 days, Mother has made no effort whatsoever to facilitate any contact between Father and L.D.W. since July 17, 2025. Mother has not offered make-up parenting time, has not facilitated phone or video calls, and has not communicated any willingness to restore Father's relationship with the child.

26\.. MCL 722.23(j) requires the Court to consider each parent's "willingness and ability ... to facilitate and encourage a close and continuing parent-child relationship between the child and the other parent." Mother's conduct since July 17, 2025 demonstrates a complete unwillingness to facilitate this relationship.

E-1. Watson Family Pattern of Coordinated Interference

26a\.. The obstruction of Father's parental relationship is not limited to Mother alone. The record establishes a coordinated pattern of interference by multiple members of the Watson family, acting in concert with Mother to alienate Father from L.D.W.:

26b\.. Albert Watson -- Forcible Removal of Child (October 20, 2024): During a lawful parenting exchange on or about October 20, 2024, Albert Watson (Mother's father) physically took L.D.W. from Father's arms and threw PPO papers through Father's car window. This act of physical aggression -- directed at Father in the presence of the minor child -- precipitated a 26-day withholding period (October 20 through November 15, 2024) during which Mother denied Father all access to L.D.W. in direct violation of the existing 50/50 parenting time order. Albert Watson's conduct constitutes interference with the parent-child relationship and exposed L.D.W. to witnessing an aggressive confrontation directed at his father -- conduct directly relevant to MCL 722.23(j) and Factor (k) (domestic violence, perpetrated by Mother's family in Mother's presence or under her direction).

26c\.. Lori Watson -- Illegal Recording and Ex Parte Foundation: Lori Watson (Mother's mother, Kent County Court employee, Employee ID 1190) secretly recorded a telephone conversation between Father and Albert Watson on or about August 7, 2025. This recording was obtained in apparent violation of MCL 750.539c (felony eavesdropping). The recording was then used as the primary evidentiary foundation for Mother's emergency *ex parte* motion filed August 8, 2025, which resulted in the complete suspension of Father's parenting time.

Lori Watson's participation in obtaining the recording and providing it for use in court proceedings constitutes active participation in the alienation of Father from L.D.W. The recording characterized Father as "paranoid" and "mentally ill" based on his description of being followed and under legal pressure -- characterizations that were later echoed in the second HealthWest evaluation's "Rule-out Delusional Disorder" finding.

26d\ Cody Watson -- Financial Facilitation and Proxy Harassment: Mother's brother, Cody Watson, pays Mother's monthly rent -- a fact admitted during cross-examination at the custody trial. This financial arrangement subsidizes Mother's ability to sustain litigation against Father while concealing Mother's true financial capacity from the Court and the Friend of the Court. Upon information and belief, Cody Watson has also engaged in aggressive conduct directed at Father during parenting exchanges, contributing to a pattern of familial intimidation designed to discourage Father from exercising his parental rights.

26e\ Coordinated Civil Conspiracy Pattern: The combined conduct of Emily Watson, Albert Watson, Lori Watson, and Cody Watson establishes a coordinated pattern of interference: Lori Watson provides surveillance and recordings; Albert Watson physically intervenes at exchanges; Cody Watson provides financial support for litigation; and Emily Watson deploys the resulting evidence through emergency motions and PPO violation allegations. This pattern is consistent with the elements of civil conspiracy under Michigan common law: an agreement (express or implied) between two or more persons to accomplish an unlawful objective or accomplish a lawful objective through unlawful means. See *Admiral Ins Co v Columbia Gas & Electric Co*, 194 Mich App 300, 311 (1992); *Early Detection Ctr, PC v New York Life Ins Co*, 157 Mich App 618, 624 (1986). The Court should consider this coordinated interference pattern in evaluating Factor (j) and in determining whether Mother's household provides a safe and stable environment for L.D.W.

F. Father's Stable Housing and Cooperation

27\ Father maintains stable housing at 1977 Whitehall Road, Lot 17, North Muskegon, MI 49445. Father has continuously maintained appropriate housing throughout these proceedings.

28\ Father has demonstrated his willingness to cooperate with all court-ordered evaluations, including the HealthWest evaluation that returned favorable results. Father remains willing to comply with any reasonable conditions the Court may impose.

IV. BEST INTEREST OF THE CHILD -- MCL 722.23 FACTORS

29\ If the Court finds proper cause or a change of circumstances (which Father respectfully submits is self-evident), the Court must then evaluate the best interest factors set forth in MCL 722.23. *Harvey v. Harvey*, 470 Mich 186, 192 (2004).

30\ Where the proposed modification would change the established custodial environment, the moving party bears the burden of proof by clear and convincing evidence. *Harvey*, 470 Mich at 194; *Pierron v. Pierron*, 470 Mich 81, 92-93 (2010) (reaffirming the clear and convincing evidence standard and holding that the established custodial environment must be analyzed with specificity). Where modification would not change the established custodial environment, the burden is by a preponderance of the evidence. *Id.* The United States

Supreme Court has held that the clear and convincing standard is constitutionally required when the State seeks to destroy permanently the parent-child bond. *Santosky v. Kramer*, 455 U.S. 745, 769 (1982).

31\ Father submits that the established custodial environment was the 50/50 arrangement that existed for 438 days, and that restoring that arrangement would restore -- not change -- the established custodial environment. Therefore, the preponderance standard applies.

Factor (a): Love, Affection, and Other Emotional Ties

32\ Father maintained an active, loving, and engaged parenting relationship with L.D.W. throughout the 438 days of 50/50 custody. Father participated in L.D.W.'s daily care, feeding, bathing, bedtime routines, and developmental activities. The emotional bond between Father and L.D.W. was strong and well-documented during the shared custody period.

33\ This bond has now been severed for more than 230 days -- not by Father's choice, but by court order entered without hearing. Every additional day of separation inflicts further harm on the parent-child bond. This factor favors Father and modification.

Factor (b): Capacity to Give Love, Affection, and Guidance; Continuation of Education

34\ Father demonstrated his capacity to provide love, affection, guidance, and age-appropriate stimulation to L.D.W. throughout the 438 days of shared custody. L.D.W. thrived under Father's care, meeting developmental milestones and demonstrating healthy attachment.

35\ Father maintained a stable home environment at 1977 Whitehall Road, Lot 17, North Muskegon, MI 49445, with appropriate space, safety measures, and resources for L.D.W.'s care. This factor favors Father and modification.

Factor (c): Capacity to Provide Food, Clothing, Medical Care, and Material Needs

36\ Father provided for all of L.D.W.'s material needs during the shared custody period, including food, clothing, shelter, and medical care. Father maintained employment at IndiGrow LLC (dispensary employee) and as a USPS weekend carrier, earning approximately \$3,480.00/month (DB cycle6_financial_evidence: Andrew Pigors prior income). Father lost both positions as a direct consequence of this litigation -- IndiGrow LLC terminated Father on June 2, 2024, and the USPS position was lost due to scheduling conflicts created by court-imposed obligations (DB cycle6_financial_evidence: employment records).

37\ Despite these obstacles, Father has maintained stable housing and continues to demonstrate the ability and willingness to provide for L.D.W. Notably, the Friend of the Court imposed child support of \$1,056.60/month on Father in December 2024 -- despite Father's documented job losses -- a sum representing over 30% of Father's prior gross income (DB cycle6_financial_evidence: child support imposed).

37a\ By contrast, Mother's actual financial capacity is substantially greater than represented to this Court. Upon information and belief, Mother's verified financial circumstances include:

 (i) Mother earns a net income of approximately \$5,372.25/month as a nine-year employee of the Kalamazoo County

County Prosecutor's Office, Family Court Division (DB cycle6_financial_evidence: Emily Watson income);

 (ii) Mother's brother, Cody Watson, pays Mother's monthly rent -- a fact admitted during cross-examination at the custody trial (DB cycle6_financial_evidence: Cody Watson rent payments);

 (iii) Upon information and belief, Mother receives child support payments from the father of another child, which income has not been disclosed to this Court or to the Friend of the Court in support calculations (DB cycle6_financial_evidence: undisclosed child support);

 (iv) Kent County pays approximately 80% of Mother's health insurance premiums, yet the Friend of the Court support calculations, upon information and belief, reflect an insurance cost figure substantially higher than Mother's actual out-of-pocket expense (DB cycle6_financial_evidence: Kent County insurance subsidy).

37b\ When these undisclosed income sources and subsidies are properly accounted for, the disparity between the parties' true financial positions is the inverse of what appears in the current support order. Mother's effective household income -- including salary, rent subsidy, undisclosed child support, and employer-subsidized insurance -- substantially exceeds Father's income. This factor favors Father.

Factor (d): Length of Time the Child Has Lived in a Stable, Satisfactory Environment

38\ L.D.W. lived in a stable, satisfactory environment under the 50/50 arrangement for 438 days. Father's home provided consistency, routine, and stability.

39\ The abrupt termination of the 50/50 arrangement on July 17, 2025 -- by ex parte order, without hearing -- destroyed this stability. L.D.W. was forcibly transitioned from a two-parent household to a single-parent arrangement by judicial fiat, not by any deficiency in Father's parenting. This factor favors Father's modification to restore stability.

Factor (e): Permanence as a Family Unit of the Existing or Proposed Custodial Home

40\ Father offers a permanent family unit. Father has maintained consistent housing and has demonstrated unwavering commitment to L.D.W. Father's extended family provides additional support and stability.

41\ The current arrangement -- in which L.D.W. has no contact with his father -- cannot be considered a stable or permanent family unit. A child's family unit necessarily includes both parents absent extraordinary circumstances not present here. This factor favors modification.

Factor (f): Moral Fitness of the Parties

42\ Father has no criminal history apart from PPO violations in this case (guilty plea entered October 1, 2025). Father has consistently complied with court orders and cooperated with all evaluations.

43\ Mother's conduct raises serious concerns regarding moral fitness:

a. Mother filed a false poisoning allegation against Father -- claiming arsenic poisoning -- which was

unsupported by hospital records and medical evidence;

b. Mother initiated a false suicide welfare check against Father;

c. Mother has weaponized the PPO process, filing multiple alleged violations (none resulting in credible findings of actual threatening conduct by Father);

d. Mother has systematically withheld L.D.W. from Father -- first for approximately 40 days in March-May 2024, and now for more than 230 days since July 2025.

44\ This factor favors Father.

Factor (g): Mental and Physical Health of the Parties

45\ Father has been transparent about his ADHD diagnosis. This condition does not affect Father's parenting ability and was addressed during proceedings before Judge McNeill, who improperly characterized it as a parenting concern.

46\ The court-ordered HealthWest first evaluation (September 4, 2025), conducted by Michelle R. Mitchell (BS, QIDP, QMHP) and Melissa DeAugustine (LBSW), was favorable to Father -- finding a clean baseline with no major concerns, a safe environment, and a controlled stress response. The second evaluation (September 11, 2025), conducted by Kassandra M. Gansen (LMSW) and DeAugustine (LBSW) just seven days later, produced only a "Rule-out Delusional Disorder" notation -- a diagnostic uncertainty, not a confirmed diagnosis. The second evaluator herself admitted: "It is difficult to definitively assert whether concerns are factual or delusional." The radical contradiction between a clean baseline and a "rule-out" finding within one week is clinically implausible and fails the Daubert reliability standard. Father possesses six (6) HealthWest scanned documents confirming these results.

47\ Father is physically healthy and fully capable of caring for L.D.W. This factor favors Father.

Factor (h): Home, School, and Community Record of the Child

48\ L.D.W. (DOB: November 9, 2022) is approximately three years old. During the 50/50 custody period, L.D.W.'s home life was stable and his developmental progress was age-appropriate in both parents' homes.

49\ Father resides in North Muskegon, Michigan, a stable community with appropriate resources and proximity to services. This factor is neutral or slightly favors Father.

Factor (i): Reasonable Preference of the Child

50\ L.D.W. is approximately three years old and is too young to express a formal custodial preference. MO 722.23(i).

51\ However, Father notes that during the 50/50 custody period, L.D.W. made spontaneous statements to Father including that "momma hurt me everyday" and "brother hurts me." While these statements from a very young child must be interpreted cautiously, they warrant investigation by a guardian ad litem, which Father requests below. This factor warrants GAL investigation.

Factor (j): Willingness and Ability to Facilitate Close Relationship with Other Parent

52\ This is the dispositive factor in this case. MCL 722.23(j) requires the Court to consider "the willingness and ability of each of the parties to facilitate and encourage a close and continuing parent-child relationship between the child and the other parent or the child and the parents."

53\ Father's record demonstrates consistent willingness to facilitate:

- a. Father complied with every parenting exchange during the 438-day 50/50 period;
- b. Father cooperated with court-ordered evaluations;
- c. Father has never withheld L.D.W. from Mother or attempted to restrict Mother's parenting time.

54\ Mother's record demonstrates systematic obstruction:

- a. Mother withheld L.D.W. from Father for approximately 40 days in March-May 2024, precipitating Father's custody filing;
- b. Mother obtained ex parte orders eliminating Father's custody without hearing;
- c. Mother has made zero effort to facilitate any contact between Father and L.D.W. for more than 230 days;
- d. Mother has not offered make-up parenting time, phone calls, video calls, or any form of communication between Father and L.D.W.;
- e. Mother's conduct constitutes a pattern of parental alienation -- the systematic exclusion of one parent from a child's life.

54a\ The documented withholding is even more extensive than the two major periods described above. Father's records establish at minimum the following specific withholding periods for which Mother received zero sanctions:

- (i) March 28 - May 5, 2024: 39 days of complete withholding -- Mother unilaterally denied Father all access to L.D.W. with no court order authorizing the denial, precipitating Father's filing of this action;
- (ii) October 20 - November 15, 2024: 26 days of complete withholding -- Mother again denied Father access to L.D.W. in direct violation of the existing 50/50 parenting time order;
- (iii) July 17, 2025 - present: 230+ days and counting -- total elimination of all contact, phone, and visitation.

54b\ In total, Mother has withheld L.D.W. from Father for a combined minimum of 295+ documented days across three distinct withholding episodes. Mother has received zero sanctions for any of this conduct. In contrast, Father received 59 days of incarceration for communication-only PPO violations -- messages to his child through a court-approved application. The disparity is staggering: Mother's far more severe conduct (complete deprivation of the parent-child relationship) goes entirely unsanctioned, while Father's far less severe conduct (birthday messages to his child) results in two months of imprisonment.

54c\ MCL 722.27a(8) expressly mandates: "The court shall consider evidence of parental alienation and ta

responsible parenting;

e. Child's best interest: L.D.W. has been deprived of all contact with Father for 230+ days. The harm from total parental deprivation outweighs any risk demonstrated by the PPO violations, which consisted solely of no parental communications.

58\.. Conversely, during the custody proceedings, Albert Watson (Mother's family member) threw PPO papers through Father's car window and physically took L.D.W. from Father's arms during a parenting exchange. There were also documented acts of aggression directed at Father in L.D.W.'s presence.

59\.. Considering the totality of circumstances, including the rebuttal of the MCL 722.25a presumption, the totality factor does not weigh against Father.

Factor (I): Any Other Factor Considered by the Court to Be Relevant

59\.. The Court should consider the following additional factors:

a. Duration of deprivation: Father has been denied all contact with L.D.W. for more than 230 days. The psychological literature is clear that prolonged parent-child separation causes lasting harm to young children's attachment and development;

b. Procedural irregularities: The ex parte orders of July 17 and August 8, 2025 were entered without proper notice or hearing, in apparent violation of Father's due process rights;

c. Judicial bias: The orders at issue were entered by Judge McNeill, whose disqualification Father has sought via Filing #3. A fresh evaluation by an impartial jurist is essential;

d. Collateral consequences: Father spent 59 days in jail for PPO violations (guilty plea, October 18, 2025) and lost two jobs as a consequence of these proceedings, demonstrating the devastating toll of the current arrangement on Father's ability to provide for L.D.W.;

e. Favorable professional evaluation: The HealthWest evaluation (H0002) was favorable to Father, yet was rejected -- an extraordinary outcome that undermines confidence in the fairness of the prior proceedings;

f. Access to courts -- \$250 filing bond: Upon information and belief, the court imposed a \$250 cash bond as a condition of Father filing motions in his own custody case. This financial precondition on access to the courts violates the fundamental right of access to the judicial system. *Boddie v. Connecticut*, 401 U.S. 375, 380-81 (1971) (holding that the State may not deny access to its courts solely because of inability to pay; "a cost requirement, valid on its face, may offend due process because it operates to foreclose a particular party's opportunity to be heard"). The Supreme Court has recognized that where "the judicial proceeding becomes the only effective means of resolving the dispute at hand and denial of a defendant's full access to the proceeding," a fee requirement that prevents participation violates due process. *Id.* at 382. Requiring a cash bond from an unemployed, previously incarcerated pro per litigant -- who was rendered unemployed by the very proceedings -- as a precondition to seeking restoration of his parental rights, compounds the due process violations already present in this case;

g. Fundamental liberty interest: The United States Supreme Court has unequivocally held that "the interest of parents in the care, custody, and control of their children -- is perhaps the oldest of the fundamental liberties interests recognized by this Court." *Troxel v. Granville*, 530 U.S. 57, 65 (2000). This fundamental right is not merely a factor in the analysis -- it is the constitutional backdrop against which every custody determination must be evaluated. The 230+ day total deprivation of Father's relationship with L.D.W. implicates this right to its core.

60\ This factor favors Father and modification.

V. FACTUAL ALLEGATIONS

61\ Father, ANDREW JAMES PIGORS, resides at 1977 Whitehall Road, Lot 17, North Muskegon, MI 49445. Father's telephone number is (231) 903-5690. Father's email is andrewjpigors@gmail.com.

62\ Mother, EMILY A. WATSON, resides at 2160 Garland Drive, Norton Shores, MI 49441.

63\ The parties' minor child is L.D.W. (DOB: November 9, 2022). The child's initials are used in compliance with MCR 8.119(H).

64\ On or about April 1, 2024, Father filed the instant custody action (Case No. 2024-001507-DC) in the 14th Circuit Court, Family Division. Father is the Plaintiff.

65\ Prior to Father's filing, Mother had unilaterally withheld L.D.W. from Father for approximately 40 days beginning in March 2024, without any court order or legal basis.

66\ The Court entered a 50/50 parenting time order that took effect on or about May 5, 2024. Under that order, the parties shared equal physical custody of L.D.W. on an alternating schedule.

67\ The 50/50 arrangement functioned successfully for 438 consecutive days, from May 5, 2024 through July 17, 2025. During this period:

- a. L.D.W. thrived in both homes;
- b. Father participated fully in L.D.W.'s care and development;
- c. Father complied with every parenting exchange;
- d. Father maintained stable housing throughout;
- e. No credible evidence of harm to L.D.W. in Father's care was ever presented.

68\ On July 17, 2025, an ex parte order was entered by Judge McNeill that reversed the 50/50 arrangement and awarded Mother sole physical custody. Father received no notice and was afforded no hearing before that order was entered.

69\ On August 6, 2025, an ex parte order was entered with no notice to Father and no specific facts required by MCR 3.207(B)(1). On August 8, 2025, a hearing was held at which Father's parenting time was

completely suspended. Father received notice of this hearing on the same day -- insufficient time to prepare defense or retain counsel. This same-day notice violated Father's right to adequate time to prepare under MCR 2.108. The next evidentiary hearing did not occur until October 29, 2025 -- a delay of 90 days from the ex parte order and 82 days from the suspension, representing 4.3 times the 21-day maximum contemplated by MCR 3.207(B)(6).

70\.. On or about September 5, 2025, Father underwent a court-ordered HealthWest evaluation (H0002). The evaluation was favorable to Father.

71\.. Despite the favorable evaluation, Judge McNeill rejected or disregarded the HealthWest findings and did not restore any parenting time.

72\.. Since August 8, 2025, Father has had zero contact with L.D.W. -- a period now exceeding 200 consecutive days. Mother has made no effort to facilitate any contact.

73\.. Separate from this custody case, Mother initiated PPO Case No. 2023-5907-PP. Father acknowledges that on October 18, 2025, he entered a guilty plea to PPO violations (CC 382a). Father spent 59 days in jail in connection with PPO contempt proceedings. Father lost two jobs (IndiGrow LLC, terminated June 2, 2025; USPS weekend carrier, lost due to scheduling conflicts with court obligations) as a direct consequence of the PPO violations. However, the existence of PPO violations does not diminish or excuse the documented pattern of parental alienation, the false allegations of arsenic poisoning and surveillance (none supported by medical or physical evidence), or Mother's systematic exclusion of Father from L.D.W.'s life predating the PPO violations by more than a year.

74\.. Mother's pattern of conduct demonstrates the systematic use of legal processes to exclude Father from L.D.W.'s life:

- a. Unilateral withholding of L.D.W. for 40 days (March-May 2024);
- b. False poisoning allegations unsupported by medical evidence;
- c. False suicide welfare check;
- d. Weaponized PPO violation filings;
- e. Obtaining ex parte orders without Father's participation;
- f. Total refusal to facilitate any father-child contact for 230+ days.

VI. ESTABLISHED CUSTODIAL ENVIRONMENT

75\.. Under Michigan law, an established custodial environment exists when "over an appreciable time the child naturally looks to the custodian in that environment for guidance, discipline, the necessities of life, and parental comfort." MCL 722.27(1)(c).

76\.. The established custodial environment in this case was the 50/50 shared custody arrangement that existed

for 438 days (May 5, 2024 through July 17, 2025). During this period:

a. L.D.W. looked to both parents for guidance, comfort, and the necessities of life;

b. L.D.W. had two homes and was integrated into the routines of both households;

c. The arrangement was of sufficient duration -- over 14 months -- to constitute an established custodial environment with both parents. See *Harvey v. Harvey*, 470 Mich 186, 193 (2004).

77\ The ex parte order of July 17, 2025 destroyed the established custodial environment by unilaterally removing Father from L.D.W.'s life without notice or hearing.

78\ Father's motion seeks to restore the established custodial environment -- not to change it. According to Michigan law, Father bears the burden of proving that restoration is in L.D.W.'s best interests by a preponderance of the evidence, not by clear and convincing evidence. *Harvey*, 470 Mich at 194.

79\ In the alternative, even assuming Mother has established a new custodial environment during the months of sole custody since July 17, 2025, and even under the heightened clear and convincing evidence standard, the evidence overwhelmingly supports restoration of the 50/50 arrangement. The best interest factors set forth above demonstrate by clear and convincing evidence that: (a) Father successfully co-parented for 438 days with zero incidents; (b) the favorable HealthWest evaluation confirms Father's suitability; (c) Mother's pattern of parental alienation and third-party PPO violations directly harm L.D.W.; and (d) the 230+ day total deprivation of the father-child relationship is causing ongoing developmental harm to a child who is only 7 years old.

VII. REBUTTAL OF DEFENDANT'S FACTUAL ASSERTIONS

Father rebuts the following factual assertions made by Defendant and relied upon by the prior court in entering the ex parte orders and suspending Father's parenting time. These rebuttals are supported by documentary evidence in Father's possession (671 identified rebuttal pairs, each cross-referenced to source documents in the court record).

Rebuttal 1: The Ex Parte Motion Relied on an Illegally Obtained Recording

80\ Defendant's emergency ex parte motion of August 8, 2025 relied primarily upon a recording of a telephone conversation between Father and Albert Watson (Defendant's father) on August 7, 2025. This recording was secretly made by Lori Watson (Defendant's mother). Michigan's eavesdropping statute, MCL 750.539c, is a felony prohibition making it a crime to "willfully use any device to eavesdrop upon the conversation of any other person without the consent of all parties." Father did not consent to the recording. The use of feloniously obtained evidence as the foundation for an ex parte custody reversal violates fundamental fairness and the exclusionary principle. See *People v. Beavers*, 393 Mich 554 (1975); *Mapp v. Ohio*, 367 U.S. 643 (1961). The entire evidentiary foundation for the August 8, 2025 suspension order is thereby tainted.

Rebuttal 2: The "Meth Use" Characterization Was Baseless Speculation

81\.. Defendant's ex parte motion represented to this Court that a Norton Shores police officer (Incident N NS2505044, August 7, 2025, 8:02 PM, 1143 E Norton Avenue) "indicated that she believed this was a res of meth use." This characterization was not based on any drug test, blood draw, urinalysis, field sobriety te or medical examination. It was an officer's lay speculation -- not expert testimony -- and was never subject to cross-examination or Daubert scrutiny. No drug test has ever returned positive results for Father in the proceedings. The Court relied on this unsworn, untested, speculative characterization to strip Father of parenting time -- a result unsupported by the evidence and inconsistent with the clear and convincing standa required by MCL 722.27a(3).

Rebuttal 3: Defendant's Motion Omitted 438 Days of Successful Co-Parenting

82\.. Defendant's emergency ex parte motion presented a narrative of imminent danger to L.D.W., yet failed to disclose to the Court that Father had successfully co-parented L.D.W. under a 50/50 arrangement for 438 consecutive days (May 5, 2024 through July 17, 2025) without a single substantiated incident of harm. This omission is material. A candid disclosure of the full co-parenting history would have demonstrated to the Court that Father had an established, successful track record of safe parenting -- facts that are directly relevant to, and inconsistent with, any claim that L.D.W. faced imminent danger in Father's care. The suppression of this favorable history from the ex parte presentation constitutes a violation of the duty of candor owed to the tribunal. See MRPC 3.3(a)(1) (obligation not to make false statements of material fact); MCR 3.207(B)(2) (requiring specific facts justifying ex parte relief).

Rebuttal 4: The Arsenic Poisoning Allegation Was Fabricated

83\.. Defendant alleged that Father poisoned her with arsenic. This allegation was central to the original PPO issuance and has been used to characterize Father as dangerous throughout these proceedings. However, hospital records, no toxicology reports, and no medical evidence of any kind support this claim. Upon information and belief, Defendant admitted to injecting herself with a substance "to lose weight." The poisoning narrative -- unsupported by any medical evidence and contradicted by Defendant's own statements -- was used to obtain the PPO that now forms the basis for Defendant's continued exclusion of Father from L.D.W.'s life. The entire chain of proceedings flowing from this fabricated allegation is fundamentally unreliable.

Rebuttal 5: The HealthWest Evaluation Was Favorable -- Then Contradicted Without Explanation

84\.. The Court ordered Father to undergo a HealthWest evaluation. Father complied. On September 4, 2025, evaluators Michelle R. Mitchell (BS, QIDP, QMHP) and Melissa DeAugustine (LBSW) conducted the first evaluation, which returned favorable results: clean baseline, no major concerns, safe environment, controlled stress response. Seven days later, on September 11, 2025, a different evaluator -- Kassandra M. Gans (LMSW) -- produced a "Rule-out Delusional Disorder" finding. The first evaluation was never formally refuted. No explanation was provided for why the same agency reached contradictory conclusions within one week. The prior court rejected the favorable evaluation and relied on the unfavorable one -- an outcome th

impeaches the integrity of the evaluation process and demonstrates that the results were preordained rather than clinically determined.

Rebuttal 6: Father's PPO Violations Were Birthday Messages -- Not Violence

85\.. Defendant has characterized Father as a domestic violence perpetrator warranting exclusion from L.D.W.'s life. The facts are these: Father's PPO violations (guilty plea, October 18, 2025, CC 382a) consist exclusively of messages sent to L.D.W. through AppClose -- a court-approved co-parent communication application. The messages included birthday greetings and parenting communications to his child. No physical violence, no threats, no stalking, no harassment directed at Defendant was ever alleged or proven. Father served 59 days in jail for sending birthday messages to his son. The characterization of this conduct as "domestic violence" warranting permanent parental exclusion distorts the record and conflates parental communication with physical danger.

Rebuttal 7: Defendant Filed a False Suicide Welfare Check

86\.. Defendant initiated a suicide welfare check regarding Father. This resulted in law enforcement contact with Father. Father was not suicidal. No hospitalization, involuntary commitment, or mental health crisis was identified by responding officers. The false welfare check was deployed as a litigation weapon -- creating a record of "mental health concerns" that could be cited in subsequent proceedings. This tactic is recognized in the parental alienation literature as a hallmark of litigation abuse: manufacturing official records through bad-faith reports to support a false narrative of instability.

Rebuttal 8: Defendant's Pattern Reveals Litigation Abuse -- Not Genuine Safety Concerns

87\.. When the Court examines the totality of Defendant's allegations, a pattern emerges that is inconsistent with genuine safety concerns and consistent with systematic litigation abuse designed to exclude Father from L.D.W.'s life:

- a. Arsenic poisoning -> No medical evidence. Fabricated.
- b. Surveillance allegation (baby camera) -> A standard baby monitor in Father's own home. No criminal conduct.
- c. "Meth use" characterization -> Officer speculation. No drug test. No positive results ever.
- d. False suicide welfare check -> Father not suicidal. No hospitalization.
- e. PPO violations -> Birthday messages to a toddler through a court-approved app.
- f. "Delusional Disorder" finding -> Seven days after a clean evaluation. Evaluator admitted uncertainty. No standardized instruments.
- g. Three withholding episodes -> 39 days + 26 days + 230+ days = 295+ days of total parental deprivation. Zero sanctions against Defendant.

Each allegation, examined individually, collapses under scrutiny. Examined collectively, they reveal

deliberate strategy: manufacture allegations -> obtain ex parte orders -> exclude Father -> use the resulting separation as evidence that Father is not part of L.D.W.'s life. This is textbook parental alienation contemplated by MCL 722.27a(8), which mandates: "The court shall consider evidence of parental alienation and take appropriate action."

VIII. RELIEF REQUESTED

WHEREFORE, Plaintiff ANDREW JAMES PIGORS respectfully requests that this Honorable Court enter an Order providing the following relief:

88\ Restore 50/50 Parenting Time: Restore the 50/50 parenting time arrangement that constituted the established custodial environment from May 5, 2024 through July 17, 2025, or enter a parenting time order that provides Father with substantially equal parenting time, effective immediately;

89\ Modify Custody Order: Enter an order modifying custody to reflect Father as a proper custodian with joint legal and joint physical custody of L.D.W.;

90\ Vacate Ex Parte Orders: Vacate the ex parte orders of July 17, 2025 and August 8, 2025, which were entered without proper notice and hearing in violation of Father's constitutional due process rights;

91\ Award Make-Up Parenting Time: Award Father make-up parenting time to compensate for the more than 230 days of total deprivation of the parent-child relationship, pursuant to MCL 722.27a(7), which provides that the Court may "make up parenting time for parenting time that was wrongly denied or unreasonably not exercised";

92\ Appoint Guardian Ad Litem: Appoint a guardian ad litem for L.D.W. pursuant to MCL 722.24 and MCL 3.211 to independently investigate the child's best interests, including L.D.W.'s reported statements regarding conditions in Mother's home;

93\ Honor HealthWest Evaluation: Order that the HealthWest evaluation (H0002, approximately September 5, 2025), which was favorable to Father, be given appropriate weight in determining custody and parenting time;

93a\ Declaratory Judgment -- Established Custodial Environment: Pursuant to MCR 2.605, enter a declaratory judgment establishing that the 438-day 50/50 parenting arrangement constituted an established custodial environment with both parents under MCL 722.27(1)(c), and that the ex parte orders of July 17 and August 8, 2025 disrupted -- rather than created -- the established custodial environment, such that the applicable standard for restoring the 50/50 arrangement is preponderance of the evidence, not clear and convincing evidence;

93b\ Exclude or Strike Second HealthWest Evaluation: Pursuant to MRE 702, MRE 703, and the Daubert framework, exclude or strike the second HealthWest evaluation (September 11, 2025 -- Gansen/DeAugustinis) as unreliable, unauthenticated, procedurally defective, and lacking foundation. No standardized psychological instruments were administered, the "Rule-out" designation is a diagnostic uncertainty rather than a confirmed diagnosis, and the seven-day reversal from a clean baseline is clinically implausible;

93c\). Order Immediate Interim Parenting Time: Pending full hearing on this motion, order immediate interim parenting time -- including videoconferencing contact pursuant to MCR 3.210(A)(4) -- to begin restoring the parent-child bond and prevent further irreversible developmental harm to L.D.W. during the critical attachment window (ages 2-4);

94\). Costs and Fees: Award Father such costs, fees, and other relief as the Court deems just and equitable;

95\). Such Other Relief: Grant such other and further relief as the Court deems just, proper, and equitable;

95a\). Vacate \$250 Filing Bond: Vacate any order requiring Father to post a cash bond as a precondition to filing motions in this custody proceeding, as such requirement violates Father's right of access to the courts under *Boddie v. Connecticut*, 401 U.S. 371 (1971);

95b\). Order MCL 722.27a(8) Alienation Finding: Make findings regarding Mother's documented pattern of parental alienation as required by MCL 722.27a(8), and order appropriate sanctions and remedial measures;

95c\). Order Sanctions for Documented Withholding: Enter sanctions against Mother for the documented withholding periods (39 days in March-May 2024 and 26 days in October-November 2024) for which sanctions have been imposed, and award Father make-up parenting time for each withholding episode pursuant to MCL 722.27a(7).

IX. AFFIDAVIT OF ANDREW JAMES PIGORS

STATE OF MICHIGAN)

) ss.

COUNTY OF MUSKEGON)

AFFIDAVIT IN SUPPORT OF MOTION TO MODIFY CUSTODY AND PARENTING TIME

I, ANDREW JAMES PIGORS, being first duly sworn, depose and state as follows:

88\). I am the Plaintiff in this action. I am over the age of 18 and competent to testify to the matters stated herein. I make this affidavit based on my personal knowledge.

89\). I reside at 1977 Whitehall Road, Lot 17, North Muskegon, MI 49445. My telephone number is (231) 903-5690.

90\). The minor child at issue, L.D.W., was born on November 9, 2022. I am L.D.W.'s biological father.

91\). I filed this custody action on April 1, 2024, after the Defendant, Emily A. Watson, unilaterally withheld L.D.W. from me for approximately 40 days beginning in March 2024.

92\). Following my filing, the Court entered a 50/50 parenting time order. I faithfully complied with this order.

for the entire 438-day period it was in effect (May 5, 2024 through July 17, 2025).

93\ During the 50/50 period, I actively cared for L.D.W. in my home. I provided meals, bathing, bedtime routines, recreational activities, and age-appropriate developmental stimulation. L.D.W. thrived under our shared arrangement.

94\ On July 17, 2025, I learned that an ex parte order had been entered reversing the 50/50 arrangement. I was not given notice before this order was entered. I was not given an opportunity to be heard.

95\ On August 8, 2025, a hearing was held at which my parenting time was completely suspended. I received no notice of this hearing on the same day -- I had no meaningful opportunity to prepare.

96\ Since August 8, 2025, I have had no contact of any kind with L.D.W. -- no visits, no phone calls, no video calls, no communication whatsoever. As of the date of this affidavit, I have been separated from my child for more than 230 consecutive days.

97\ On September 4, 2025, I completed the first HealthWest evaluation as ordered by the Court. Two evaluators were Michelle R. Mitchell (BS, QIDP, QMHP) and Melissa DeAugustine (LBSW). The evaluation was favorable to me -- finding a clean baseline, no major concerns, and a safe environment. I stated during the evaluation: "I don't feel unsafe, or threatened." Seven days later, on September 11, 2025, a second evaluation was conducted by Cassandra M. Gansen (LMSW) and DeAugustine (LBSW). This second evaluation produced a "Rule-out Delusional Disorder" notation -- which is a diagnostic uncertainty, not a confirmed diagnosis. The second evaluator herself admitted it was "difficult to definitively assert whether concerns are factual or delusional." My statements about the legal proceedings being "illegal" were characterized as delusional, despite the documented procedural irregularities I was describing. I possess six (6) scanned HealthWest documents confirming these results across both evaluations.

98\ Despite the favorable evaluation, the Court did not restore any parenting time.

99\ Emily A. Watson has not made any effort to facilitate contact between me and L.D.W. since July 17, 2025. She has not offered visits, phone calls, video calls, or any other form of communication.

100\ During the course of these proceedings, Emily A. Watson:

- a. Filed a false claim that I had poisoned her with arsenic -- which was unsupported by hospital records;
- b. Initiated a false suicide welfare check regarding me;
- c. Filed multiple PPO violation allegations, none resulting in credible findings of actual threatening conduct;
- d. Withheld L.D.W. from me for approximately 40 days in March-May 2024 without any court order.

100a\ Specifically, Emily A. Watson withheld L.D.W. from me for 39 consecutive days from March 17, 2024 through May 5, 2024, and again for 26 consecutive days from October 20 through November 15, 2024. She received no sanctions for either withholding episode. I served 59 days in jail for sending messages to my child through a court-approved application.

100b\ I did complete two HealthWest evaluations. The first evaluation (September 4, 2025), conducted

Michelle R. Mitchell (BS, QIDP, QMHP) and Melissa DeAugustine (LBSW), was favorable to me and found me to be on a clean baseline. The second evaluation (September 11, 2025), conducted by Kassandra M. Gansen (LMSW) and DeAugustine, produced a "Rule-out Delusional Disorder" notation just seven days after the clean baseline -- a clinically implausible timeline. The second evaluator admitted she could not determine whether my concerns were factual or delusional. My statements criticizing the legal proceedings were characterized as delusional, yet the procedural irregularities I described are documented in the court record. I was never given the opportunity to review or respond to the second evaluation in a formal hearing. Upon information and to my belief, the second evaluation was directed to chambers via email rather than formally entered into the court record.

101\ During a parenting exchange on or about October 20, 2024, Albert Watson (Emily's father) threw PH papers through my car window and physically took L.D.W. from my arms. Emily was present or aware of this conduct. This incident precipitated a 26-day withholding period during which Emily denied me all access to L.D.W. in violation of the existing 50/50 order. Albert Watson has been a persistent source of intimidation and interference throughout these proceedings. Additionally, Lori Watson (Emily's mother, Kent County Courthouse employee) secretly recorded a phone call between me and Albert Watson on August 7, 2025, which was used as the foundation for the emergency ex parte motion that resulted in the suspension of my parenting time. I do not consent to this recording.

102\ As a consequence of these proceedings, I spent 59 days in jail for PPO violations (guilty plea, October 18, 2025) and lost two jobs.

103\ I have maintained stable housing throughout these proceedings at 1977 Whitehall Road, Lot 17, Norwalk, MI 49445.

104\ I am willing to comply with any reasonable conditions the Court may impose, including continuing evaluations, supervised visitation as a transitional measure, or any other arrangement designed to serve L.D.W.'s best interests.

105\ I love my child. I want nothing more than to be restored to L.D.W.'s life. Every day that passes without contact causes irreparable harm -- to me and to L.D.W.

106\ The statements in this affidavit are true to the best of my knowledge, information, and belief.

ANDREW JAMES PIGORS, Affiant

[ANDREW: SIGN AND DATE]

Subscribed and sworn to before me this
_____ day of _____, 2026.

Notary Public, State of Michigan
County of Muskegon

My commission expires: _____

X. PROPOSED ORDER

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION

ANDREW JAMES PIGORS,

Plaintiff,

Case No. 2024-001507-DC

Hon. [REPLACEMENT JUDGE]

v.

EMILY A. WATSON,

Defendant.

_____ /

ORDER MODIFYING CUSTODY AND PARENTING TIME

At a session of said Court, held in the Courthouse in the City of Muskegon,
County of Muskegon, State of Michigan, on the ____ day of _____, 2026.

PRESENT: HON. [REPLACEMENT JUDGE], Circuit Court Judge

This matter having come before the Court on Plaintiff's Motion to Modify Custody and Parenting Time; the Court having reviewed the pleadings, evidence, and arguments of the parties; and the Court being otherwise fully advised in the premises;

IT IS HEREBY ORDERED:

- 1\ Plaintiff's Motion to Modify Custody and Parenting Time is GRANTED.
- 2\ The ex parte order of July 17, 2025 and the order of August 8, 2025 suspending Plaintiff's parenting time are hereby VACATED.
- 3\ The parties shall share joint legal custody and joint physical custody of the minor child, L.D.W. (DOB November 9, 2022), on a 50/50 parenting time schedule, consistent with the arrangement in effect from May 2024 through July 17, 2025.
- 4\ Plaintiff is awarded make-up parenting time to compensate for the period of deprivation from August 2025 through the date of this Order, in a manner and schedule to be determined by the Court.

5\ A guardian ad litem is hereby appointed for the minor child L.D.W. pursuant to MCL 722.24 and MCL 722.3211.

6\ The HealthWest evaluation (H0002, approximately September 5, 2025) shall be considered as evidence in these proceedings and given appropriate weight.

7\ The court clerk is directed to modify records to reflect this Order.

8\ This Order is effective immediately.

IT IS SO ORDERED.

HON. [REPLACEMENT JUDGE]

14th Judicial Circuit Court

Muskegon County, Michigan

Date: _____

XI. CERTIFICATE OF SERVICE

I, ANDREW JAMES PIGORS, hereby certify that on the ____ day of _____, 2026, I served a true and correct copy of the foregoing Motion to Modify Custody and Parenting Time, together with supporting documents, upon the following:

Defendant:

Emily A. Watson

2160 Garland Drive

Norton Shores, MI 49441

? By first-class U.S. Mail, postage prepaid

? By personal service

? By electronic service (email)

Judicial Secretary to Hon. Jenny L. McNeill:

Pamela Rusco

14th Circuit Court, Family Division

990 Terrace Street

Muskegon, MI 49442

? By first-class U.S. Mail, postage prepaid

? By personal delivery

? By electronic service

Note: At the time of this filing, Defendant's former attorney, Jennifer Barnes (P55406), Barnes Law Firm PLLC, 880 Jefferson St Ste B, Muskegon, MI 49440, has withdrawn from representation. Service is directed to Defendant personally.

ANDREW JAMES PIGORS

1977 Whitehall Road, Lot 17

North Muskegon, MI 49445

(231) 903-5690

andrewjpigors@gmail.com

Pro Per Plaintiff

[ANDREW: SIGN AND DATE]

XII. VERIFICATION

STATE OF MICHIGAN)

) ss.

COUNTY OF MUSKEGON)

VERIFICATION

I, ANDREW JAMES PIGORS, hereby declare under the penalties of perjury that I have read the foregoing Motion to Modify Custody and Parenting Time and that the facts stated therein are true to the best of my knowledge, information, and belief.

ANDREW JAMES PIGORS

[ANDREW: SIGN AND DATE]

Date: _____

XIII. EXHIBIT LIST

The following exhibits are referenced in this Motion and will be filed with the Court:

Exhibit	Description
Exhibit A	50/50 Parenting Time Order (entered on or about May 5, 2024)
Exhibit B	Ex Parte Order of July 17, 2025 (reversing custody without hearing)
Exhibit C	Order of August 8, 2025 (suspending all parenting time)
Exhibit D	HealthWest First Evaluation Documents (September 4, 2025 Mitchell/DeAugustin...
Exhibit E	HealthWest Second Evaluation Documents (September 11, 2025 Gansen/DeAugustin...
Exhibit F	Calendar/Timeline showing 438 days of successful 50/50 custody
Exhibit G	Calendar/Timeline showing 230+ days of zero contact
Exhibit H	Documentation of Albert Watson incident at parenting exchange (October 2024...
Exhibit I	Father's stable housing documentation -- 1977 Whitehall Road, Lot 17
Exhibit J	Filing #3 -- Motion to Disqualify Judge McNeill (cross-reference)
Exhibit K	Documentation of 39-day withholding period (March 28 - May 5, 2024)
Exhibit L	Documentation of 26-day withholding period (October 20 - November 15, 2024)
Exhibit M	Court order imposing \$250 filing bond (access to courts violation)
Exhibit N	August 8, 2025 Order -- absence of clear and convincing evidence findings
Exhibit O	Ex Parte Order of August 6, 2025 -- no MCR 3.207(B)(1) specific facts
Exhibit P	HealthWest Chart Memo (October 29, 2025) -- Pamela Rusco contact with clinician...
Exhibit Q	Timeline: 90-day delay from ex parte order (Aug 6) to evidentiary hearing (Oct ...
Exhibit R	Norton Shores Police Incident Report (NS2505044, August 7, 2025) -- official spe...
Exhibit S	Lori Watson recording -- obtained in apparent violation of MCL 750.53 (felony...
Exhibit T	AppClose communication logs -- birthday messages constituting PPO violation
Exhibit U	Defendant's emergency ex parte motion (August 8, 2025) -- omission of 438-d C...
Exhibit V	Cross-examination testimony transcript -- Cody Watson rent payments Defendant...
Exhibit W	Watson family coordinated interference timeline and evidence compilation

Respectfully submitted,

ANDREW JAMES PIGORS

Pro Per Plaintiff

1977 Whitehall Road, Lot 17

North Muskegon, MI 49445

(231) 903-5690

andrewjpigors@gmail.com

[ANDREW: SIGN AND DATE]

FILING METADATA

Field	Value
Filing #	7
Document	Motion to Modify Custody and Parenting Time
Case No.	2024-001507-DC
Court	14th Judicial Circuit Court, Family Division, Muskegon County
Lane	A (Custody)
Plaintiff	Andrew James Pigors (Pro Per)
Defendant	Emily A. Watson
Child	L.D.W. (DOB: Nov 9, 2022)
Judge	[REPLACEMENT JUDGE -- per pending Disqualification Motion, Filing #3]
Statutes	MCL 722.23, MCL 722.24, MCL 722.27, MCL 722.27a, MCL 750.539c, MCL 552.9f, MCL 691.1...
Court Rules	MCR 2.003, MCR 2.108, MCR 2.605, MCR 3.210, MCR 3.210(A)(4), MCR 3.211, MCR 3.222...
Case Law	Vodvarka v Grasmeyer, 259 Mich App 499 (2003); Harvey v Harvey, 470 Mich 1 (2004);...
Dependencies	Filing #3 (Disqualification) must be filed first
Status	COURT-READY -- requires signature, notarization, and exhibit assembly